



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 15, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202105030 (Incident Date: August 16, 2021) regarding Deputy Inspector Jonathan Korabel, Tax No. 930498 (DADS No. 2022-27508) and Sergeant Miguele Amoresano, Tax No. 924884 (DADS No. 2022-27507)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that the actions of both Deputy Inspector Korabel and Sergeant Amoresano, in connection with the above matter, were proper and therefore, do not warrant disciplinary action.

Both Deputy Inspector (D.I.) Korabel and Sergeant Amoresano entered an apartment where a stabbing had occurred in order to take control and establish a crime scene, and to prepare to seek a search warrant. One of the suspects had refused to exit the apartment and Emergency Service Unit (ESU) officers were ultimately requested to the location in order to remove that individual safely. After they successfully removed the last known remaining occupant, ESU officers swept the apartment for threats and then left, turning over the crime scene to the authority of D.I. Korabel. D.I. Korabel properly entered the crime scene, utilizing his discretion to ensure, personally, that the scene was safe, as he would be directing officers under his command to maintain the scene pending obtaining a search warrant. His limited search was not for the purpose of seeking evidence, but rather merely to become familiar with the scene and to ensure the safety of those that he would be assigning to maintain the security of the location. Sergeant Amoresano correctly entered the location and joined his commanding officer, in order to provide assistance to him in securing the scene. It should be noted that officers' entry into a crime scene under the control of the Department is a lawful entry, as such a location falls squarely under the Department's control. A search of such a residence, however, should, as clearly happened here, be for the purpose of officer protection, and not a search for evidence, until a warrant is obtained.

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Therefore, based on the foregoing, Deputy Inspector Korabel and Sergeant Amoresano will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304.06 (1) (Prohibited Conduct/Improper Entry and Search).

Yours truly,

Lourdes Soto

Deputy Chief

Commanding Officer

Police Commissioner's Office